



2026:AHC:129560

HIGH COURT OF JUDICATURE AT ALLAHABAD

APPLICATION U/S 528 BNSS No. - 36991 of 2025

Satish Kumar Bharti Urf Chotu

.....Applicant(s)

Versus

State Of U.P. And 2 Others

.....Opposite
Party(s)

Counsel for Applicant(s)	:	Mannu Ram, Pankaj Kumar Gupta
Counsel for Opposite Party(s)	:	G.A., Udit Chandra

Court No. - 68

(Sl no.-65)

HON'BLE ANISH KUMAR GUPTA, J.

1. Heard Sri Pankaj Kumar Gupta, learned counsel for the applicant, Sri Nitesh Patel, holding brief of Sri Udit Chandra, learned counsel for the Electricity Department and Sri Sandeep Chaudhary, learned A.G.A. for the State.
2. The instant application has been filed seeking quashing of the entire proceedings of **Sessions Case No. 557 of 2023 (State Vs. Satish Kumar Bharti alias Chhotu)** arising out of Case Crime No. 667 of 2020 under Section 135 of the Indian Electricity Act, 2003, P.S. Anti Power Theft, District Chandauli, pending in the Court of Addl. District & Sessions Judge, FTC, Chandauli.
3. Briefly stated facts of the case are that as per the first information report, during inspection on 26.10.2020, it was found that the applicant was found having connected the electricity directly without any valid connection. On inquiry, he could not produce any valid document with regard to use of the electricity in his premises. Video recording of the aforesaid illegal use of electricity was also made and thereafter a first information report was lodged on 30.10.2020. Matter was investigated and the charge-sheet has been filed against the applicant under Section

135 of the Indian Electricity Act on which the cognizance has been taken by the Special Judge, Chandauli vide order dated 5.7.2023.

4. Being aggrieved, the instant application has been filed by the applicant seeking quashing of the entire proceedings of the aforesaid criminal case lodged against the applicant.

5. Learned counsel for the applicant has relied upon second proviso of Section 135 (1) (a) of the Act and submits that the first information report ought to have been lodged within 24 hours from the date of inspection when the electricity theft was found under the premises of the applicant. Since the first information report was lodged on 30.10.220 after 4 days, therefore, no cognizance can be taken on the said first information report by the trial court. Learned counsel for the applicant further submits that Section 135 (1) provides five circumstances which constitute 5 different offences of theft of electricity and the same has not been specified either in the first information report or in the charge-sheet or in the order taking cognizance against the applicant. In such view of the matter, the order of cognizance is not sustainable in the eyes of law and he seeks quashing of the entire proceedings against the applicant.

6. In support of his submission, learned counsel for the applicant has relied upon the judgment of this Court in the case of **Varun Kumar Yadav Vs. State of U.P. and others, 2025(7) ADJ 710** and the judgment of the Division Bench of this Court dated 2.12.2023 passed in Criminal Misc. **Writ Petition No. 18729 of 2023 (Ashim @ Hassim Vs. State of U.P. and another)**.

7. Per contra, learned counsel appearing for the Electricity Department relied upon the judgment dated 6.2.2013 passed in Criminal Misc. **Writ Petition No. 265 of 2023 (Indresh Patel @ Indreshwar Singh Vs. State of U.P. and 4 others)** and submits that in the aforesaid judgment, the Division Bench of this Court has held that the aforesaid provision of Section 135 (1-A) of the Act are only directory and has no consequence as otherwise specified for breach of its condition.

8. It is further submitted by the learned counsel for the Electricity Department that against the judgement in the case of **Varun Kumar Yadav (supra), Special Leave Petition (Crl.) Diary No. 74474 of 2025 (Purvanchal Vidyut Vitran Nigam Limited versus Varun Kumar Yadav and others)** has already been filed before the Apex Court and vide order dated 23.1.2026 the notices were issued to the respondents in the said special leave petition. Learned counsel for the respondent further submitted that though specific category of offences under Section 135 (1) of the Act, 2003 has not been mentioned in the FIR, however, from narration of the FIR it is apparent that the petitioner is liable for the offence under Section 135 (1) (a) and merely because the general provisions of offence under Section 135 has been mentioned, which define the offense in different category, no benefit can be granted to the applicant herein once the narration in the FIR is categorical and complete.

9. Before proceeding further in the matter, it would be relevant to take note of Sections 135 of the Electricity Act, 2003 which reads as under:

"Section 135. (Theft of Electricity): ---[(1) Whoever, dishonestly,

(a) taps, makes or causes to be made any connection with overhead, underground or under water lines or cables, or service wires, or service facilities of a licensee or supplier as the case may be; or

(b) tampers a meter, installs or uses a tampered meter, current reversing transformer, loop connection or any other device or method which interferes with accurate or proper registration, calibration or metering of electric current or otherwise results in a manner whereby electricity is stolen or wasted; or

(c) damages or destroys an electric meter, apparatus, equipment, or wire or causes or allows any of them to be so damaged or destroyed as to interfere with the proper or accurate metering of electricity,

(d) uses electricity through a tampered meter; or

(e) uses electricity for the purpose other than for which the usage of electricity was authorised, so as to abstract or consume or use electricity shall be punishable with imprisonment for a term which may extend to three years or with fine or with both:

Provided that in a case where the load abstracted, consumed, or used or attempted abstraction or attempted consumption or attempted use -

(i) does not exceed 10 kilowatt, the fine imposed on first conviction shall not be less than three times the financial gain on account of such theft of electricity and in the event of second or subsequent conviction the fine imposed shall not be less than six times the financial gain on account of such theft of electricity;

(ii) exceeds 10 kilowatt, the fine imposed on first conviction shall not be less than three times the financial gain on account of such theft of electricity and in the event of second or subsequent conviction, the sentence shall be imprisonment for a term not less than six months, but which may extend to five years and with fine not less than six times the financial gain on account of such theft of electricity:

Provided further that in the event of second and subsequent conviction of a person where the load abstracted, consumed, or used or attempted abstraction or attempted consumption or attempted use exceeds 10 kilowatt, such person shall also be debarred from getting any supply of electricity for a period which shall not be less than three months but may extend to two years and shall also be debarred from getting supply of electricity for that period from any other source or generating station:

Provided also that if it is proved that any artificial means or means not authorized by the Board or licensee or supplier, as the case may be, exist for the abstraction, consumption or use of electricity by the consumer, it shall be presumed, until the contrary is proved, that any abstraction, consumption or use of electricity has been dishonestly caused by such consumer.

(1-A) Without prejudice to the provisions of this Act, the licensee or supplier, as the case may be, may, upon detection of such theft of

electricity, immediately disconnect the supply of electricity:

Provided that only such officer of the licensee or supplier, as authorized for the purpose by the Appropriate Commission or any other officer of the licensee or supplier, as the case may be, of the rank higher than the rank so authorised shall disconnect the supply line of electricity: Provided further that such officer of the licensee or supplier, as the case may be, shall lodge a complaint in writing relating to the commission of such offence in police station having jurisdiction within twenty four hours from the time of such disconnection: Provided also that the licensee or supplier, as the case may be, on deposit or payment of the assessed amount or electricity charges in accordance with the provisions of this Act, shall, without prejudice to the obligation to lodge the complaint as referred to in the second proviso to this clause, restore the supply line of electricity within forty-eight hours of such deposit or payment.]

(2) [Any officer of the licensee or supplier as the case may be,] authorized in this behalf by the State Government may – (a) enter, inspect, break open and search any place or premises in which he has reason to believe that electricity [has been or is being,] used unauthorisedly;

(b) search, seize and remove all such devices, instruments, wires and any other facilitator or article which has been, or is being, used for unauthorized use of electricity;

(c) examine or seize any books of account or documents which in his opinion shall be useful for or relevant to, any proceedings in respect of the offence under sub-section (1) and allow the person from whose custody such books of account or documents are seized to make copies thereof or take extracts therefrom in his presence.

(3) The occupant of the place of search or any person on his behalf shall remain present during the search and a list of all things seized in the course of such search shall be prepared and delivered to such occupant or person who shall sign the list: Provided that no inspection, search and seizure of any domestic places or domestic premises shall be carried out between sunset and sunrise except in the presence of an adult male member occupying such premises.

(4) The provisions of the Code of Criminal Procedure, 1973, relating to search and seizure shall apply, as far as may be, to searches and seizure under this Act."

10. Section 135 of the Electricity Act deals with the theft of electricity, and sub-section (1) provides various categories of offenses which come within the purview of theft of electricity. However, the punishment provided for all the categories mentioned in sub-section (1) of Section 135 is the same, i.e. imprisonment of a term which may extend to 3 years or with fine or with both. In the considered opinion of this court narration of the offence made in the FIR categorically mentions that the offense is under Section 135 (1) as there was no authorized electricity connection in the premises of the applicant herein. However, he was found using the electricity by laying the cable illegally. Videography of the same was also made. He was unable to show any document for such use of electricity nor he has produced any document before this court, which authorized him to use the electricity. The different categories provided under sub-section (1) of Section 135 can be seen as the definition of theft of electricity. Therefore, this court do not find any illegality in non-mentioning of the specific category as mentioned in sub-section (1) of Section 135 in the FIR or in the charge sheet and the cognizance order, because the offence is mentioned under section 135, though the different categories are there, which is nothing but only the definition, which includes the offense of theft of electricity. Reliance placed by learned counsel for the applicant in the judgment of **Ashim @ Hassim (supra)** cannot be applied in the instant case, as the same relates to the Gangster Act and entirely different connotation have been made to the different offenses under the Gangster Act. In **Indresh Patel (supra)**, the Division Bench of this Court has taken a view that the period of 24 hours as provided in second proviso to Section 135 (1-A) of the Electricity Act is directory and no consequences otherwise specified for the breach of its conditions. However, the Coordinate Bench in **Varun Kumar Yadav (supra)** has taken a different view and has applied the principle that once a particular thing is directed to be done in a particular manner, anything done otherwise will be void and illegal, as has been held by the Apex

Court in **Dr. Arun Kumar v. Nagar Nigam, Bareilly 2017 (2) ADJ 638**. Against the judgment of **Varun Kumar Yadav (supra)**, SLP has been filed and the same is still pending before the Apex Court.

11. Learned counsel for the applicant herein has further relied upon the Section 57 of the Electricity Act which provides for the standard of performance by licensee, and sub-section (2) of Section 57 provides that if the licensee fails to meet the standards specified under sub-section (1), without prejudice to any penalty which may be imposed or prosecution be initiated, it shall be liable to pay such compensation to the person affected as may be determined by the appropriate commission. Learned counsel for the applicant further relied upon clause 8.2 of the UP Electricity Supply Code 2005, which also reaffirms that the complaint before the police ought to have been lodged within 24 hours and the case in this regard to be filed before the special court within 30 days and failure to lodge the case within 30 days before the special court would attract the obligations under Section 57 of the Electricity Act. Thus, the consequences for non-compliance of provisions of Section 135 (1-A) i.e. to lodge the FIR within 24 hours, is categorically provided in the Electricity Code as well as Section 57 of the Electricity Act. Therefore, the observations made by the Division Bench of this Court in **Indresh Patel (supra)** that no consequences are provided are the per incuriam observations, which have been observed without looking into the provisions of Section 57 and clause 8.2 of the Electricity Supply Code 2005. Therefore, the judgment of **Indresh Patel (supra)** in the considered opinion of this court, being per incuriam, is not a binding precedent. Having held so, since the clear consequences are provided in the Electricity Act as well as the Electricity Supply Code, and the Act provides that the criminal proceedings ought to have been lodged within 24 hours of such disconnection made by the licensee.

12. It is admitted case that the FIR was lodged after 4 days much beyond the period of 24 hours. In such view of the matter, relying upon the judgment of **Varun Kumar Yadav (supra)**, the instant application is **allowed** and the entire proceeding of Sessions Case No. 557 of 2023

(State Vs. Satish Kumar Bharti alias Chhotu) arising out of Case Crime No. 667 of 2020 under Section 135 of the Indian Electricity Act, 2003, P.S. Anti Power Theft, District Chandauli, pending in the Court of Addl. District & Sessions Judge, FTC, Chandauli are hereby **quashed** against the applicant herein. The respondent no. 2 is further directed to initiate appropriate proceedings against respondent no. 3, who has failed to lodge the FIR within the stipulated period, as mandated under Section 135 (1) (a) of the Act, 2003.

(Anish Kumar Gupta,J.)

June 29, 2026

n.u./o.k.